

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

June 8, 2009

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Mr. Spiker and Mr. Valdez. Absent: Dr. Rinne. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mayor Kaysen announced Agenda Item # 38(e) was being withdrawn from the meeting agenda at the request of staff. Upon request by Mr. Collins, and pursuant to support received by Mr. Brown and Ms. Ash, agenda item #38(c) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body present.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON May 26, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JUNE 1, 2009. Motion (per Consent Agenda) carried.

Mr. Collins moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Ms. Broyles disclosed that a voucher payable to Lew Broyles and Son, Inc. did not involve any current family connections or conflict of interest. Upon inquiry regarding a voucher payable to Cheyenne Regional Medical Center (\$9,441.90), Lt. Mark Munari, Police Dept., advised the expenditure is for SANE hospital medical exam kits, and Barb Dorr, City Treasurer, provided information regarding a voucher payable to George K. Baum & Co. (\$10,831.00), professional services fee involving lease/option to purchase agreement for sanitation equipment. Motion carried. Voting "yes" – all members of the governing body present.

Mayor Kaysen opened a public hearing to receive comments on a proposed trade of real property owned by the City of Cheyenne to Cheyenne Hotel Investors, LLC, and Cheyenne Hotel Investors II, LLC, described as a parcel of land situated in a portion of the Replat of Westland Subdivision, said subdivision being further described as a portion of Lot 1 of Block One, a portion of Lot 1 of Block Two and a portion of vacated County Road 51, consisting of approximately 51,423 square feet (estimated appraised value \$97,703.70), for real property owned by Cheyenne Hotel Investors, LLC, and Cheyenne Hotel Investors II, LLC, to the City of Cheyenne, described as a

parcel of land situated in a portion of Lot 4, Block Two, Griffin Addition; and an adjoining portion of Government Lot 5 of Section 36, T. 14 N., R. 67 W., 6th P.M., Laramie County, lying generally south and west of said Lot 4, all consisting of approximately 75,682 square feet (estimated appraised value \$75,901.45), plus the sum of \$21,802.25 which represents the difference between the value of the land to be exchanged between the parties, said funds to be used for design and construction of amenities for Pat Griffin Park, (generally located west of Westland Road and east of I-25). Rick Parish, Parks and Recreation Director, stated the property involves a portion of land previously approved for trade between the parties by the governing body, but that the amount of land being traded has changed since it was last reviewed. He explained the location of parcels involved in the proposed trade and indicated development of the property will allow for a future green space corridor along Crow Creek, and hotel project for the Cheyenne Hotel Investors group. Donn Edmunds questioned whether a public park would be built at the location with Mr. Parish responding that the project will allow for future potential development of a park and Greenway access. Upon inquiry regarding deed restrictions on the property currently owned by the City, Mr. Parish advised city staff has spoken with a representative of the previous owners who deeded the property to the City and that the City has received written agreement to the proposed land trade. There being no further comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public hearing to receive comments on a bar and grill liquor license application filed with the City Clerk's Office for Suite 1901 CLLC d/b/a Suite 1901, 1901 Central Avenue, Cheyenne, WY. Upon inquiry, City Clerk Carol Intlekofer clarified if the application is approved, this is the City's last bar and grill liquor license available through the City based upon the state law population formula. There being no further comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to receive comments on a winery permit application filed with the City Clerk's Office for Suite 1901 CLLC d/b/a The Winery at 1901, 1901 Central Avenue, Cheyenne, WY. Upon inquiry, John Harrison, CEO and representative of Suite 1901, spoke in favor of the application and briefly explained the proposed renovation of the Frontier hotel facility which will result in several multi-business uses, including a bar and grill liquor environment, restaurant, winery, and meeting rooms. There being no further comments or discussion and purpose of the hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

"AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO BUSINESS LICENSE AND PERMIT FEES." Reporting for Finance Committee, Mr. Valdez moved to approve on third and final reading, seconded by Ms. Ash. Ms. Broyles moved to amend the restaurant liquor license fee from \$1,025.00 to \$1,050.00, seconded by Mr. Collins. It was advised the amendment will provide for the fee to be the same as that assessed by Laramie County for restaurant liquor licenses. Upon inquiry, City Clerk Carol Intlekofer clarified the fee was initially proposed to be increased by \$25.00 but since the ordinance was introduced she learned that the County's fee was \$1,050.00 and, therefore, brought it to the Finance Committee's attention for amendment consideration. Motion to amend carried. Voting "yes" – all members of the governing body present with the exception of Ms. Ash voting "no".

Main motion as amended carried. Voting “yes” – all members of the governing body present. (#3844)

“AN ORDINANCE AMENDING VARIOUS CHAPTER SECTIONS OF TITLE 8, HEALTH AND SAFETY, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO FEES FOR FALSE ALARMS; PUBLIC DISPLAY FIREWORKS PERMITS; FLAMMABLE AND COMBUSTIBLE LIQUIDS AND FUEL DISPENSING BUSINESS LICENSES; PORTABLE FIRE EXTINGUISHERS AND HOSE STATION EQUIPMENT BUSINESS LICENSES; FOOD AND FOOD SERVICE ESTABLISHMENTS BUSINESS LICENSES AND PERMITS, AND NOISE CONTROL PERMITS.” Mr. Valdez moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present. (#3845)

“AN ORDINANCE AMENDING SECTION 9.24.110 OF CHAPTER 9.24, WEAPONS, OF TITLE 9, PUBLIC PEACE AND WELFARE, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO THE FEE FOR A FIREARM DEALER’S BUSINESS.” John Fafoutakis spoke in opposition to fee increases, questioned why a separate ordinance was introduced for this topic, and commented on the effect of fee increases on small business owners and promoting a viable downtown business environment. City Clerk Carol Intlekofer explained separate ordinances were prepared as different licensing areas involved separate titles and chapters (subjects) of City Code. Mr. Valdez moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present. (#3846)

“AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 12.20, CEMETERIES, OF TITLE 12, STREETS, SIDEWALKS AND PUBLIC PLACES, OF THE CODE OF THE CITY OF CHEYENNE PERTAINING TO CEMETERY FEES.” Mr. Valdez moved to approve on third and final reading, seconded by Mr. Collins. Upon inquiry, Jason Sanchez, Cemetery Division Director, advised proposed increases include opening and closing and perpetual care fees, stating the last time opening/closing fees were increased was in 2006 and fees had not been increased prior to that time since 1997. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3847)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, TRACTS 249, 250, 251, 252, SUNNYSIDE ADDITION 6TH FILING, EXCEPT NORTH 240 FEET THEREOF, INCLUDING PORTIONS OF CHARLES STREET AND ARTHUR STREET.” Reporting for Public Services Committee, Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Ms. Broyles declared a conflict of interest (family relationship) and vacated Council Chambers. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers. Following announcement of the vote, Ms. Broyles returned to Council Chambers. (#3848)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PORTION OF SECTIONS 30, 31, AND 32, T.14N., R.65W., AND A PORTION OF SECTION 36, T. 14N., R 66W. OF THE 6TH P.M. GENERALLY DESCRIBED AS PUBLIC ROAD AND ALLEY RIGHT-OF-WAY BEING ANNEXED AS FOLLOWS: CAMPSTOOL ROAD COMMENCING AT COMMERCE CIRCLE, THENCE EASTERLY AND SOUTHERLY TO INTERSTATE 80, CHRISTENSEN ROAD COMMENCING AT CAMPSTOOL ROAD, THENCE NORTHERLY TO

THE UNION PACIFIC RAILROAD, AND VENTURE DRIVE COMMENCING AT CAMPSTOOL ROAD, THENCE EASTERLY TO THE INTERSTATE 80 SERVICE ROAD, LARAMIE COUNTY, WYOMING.” Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present. (#3849)

“AN ORDINANCE AMENDING SECTION 13, PARKING, AS PREVIOUSLY AMENDED BY ORDINANCE #3799 FOR STOREY ACRES, SECOND FILING, REFINEMENT B; PREVIOUSLY KNOWN AS A PORTION OF STOREY ACRES, SECOND FILING, CHEYENNE, WYOMING (LOCATED SOUTH OF AND ADJACENT TO STOREY BOULEVARD, BETWEEN SUNSET DRIVE AND TOWNSEND PLACE).” Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present. (#3850)

“AN ORDINANCE AMENDING THE CITY OF CHEYENNE’S SANITATION FEE SCHEDULE.” John Fafoutakis expressed concern with fee increases and effect on citizens with fixed incomes, and commented on revenue to the general fund, various City projects/operations and expenditure levels. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3851)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES, AND PENALTIES AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Mr. Valdez moved to amend the insufficient funds/returned check fee from \$31 to \$30, seconded by Ms. Broyles. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3852)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Jack Quirk, Eric Miller and John Fafoutakis spoke in opposition to fee increases, commenting on the current state of the economy and effect of increased fees on individuals with fixed incomes. Donn Edmunds questioned the dollar amount to homeowners pursuant to proposed fee increases with Randy Hays, Board of Public Utilities, advising the average household user would see an approximate increase of \$1.78/mo., and the average residential sewer user would see an increase of about \$1.05/mo. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3853)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEPTIC WASTE DUMP RATES AND LIQUID COMMERCIAL WASTE RATES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Jack Quirk spoke in opposition to fee increases generally and overall rise in expenses to the community, and encouraged the governing body to reconsider implementing fee increases all at once. Mr. Valdez moved to

approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3854)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED TAP FEES, SYSTEM DEVELOPMENT FEES, PUMP STATION FEES, AND OTHER RELATED FEES RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3855)

“AN ORDINANCE APPROVING AND ESTABLISHING REVISED SEWER RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES TO BE EFFECTIVE JANUARY 1, 2010.” Mr. Valdez moved to approve on third and final reading, seconded by Ms. Ash. Motion carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. (#3856)

“AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY CHANGING THE DEFINITION OF OFF-PREMISE SIGN IN SECTION 17.04.040, DEFINITIONS, SIGNAGE, AND BY ADDING ADDITIONAL LANGUAGE TO SECTION 17.128.090 G., OFF-PREMISE SIGNS.” Mr. Collins and Mr. Valdez each declared a conflict of interest (property ownership involving leasing of billboards) for this as well as the next agenda item, and vacated Council Chambers. Frank Cole, Cole Shopping Center, discussed a 2006 amendment to the zoning code resulting in the proposed ordinance, City control of placement and number of billboards and effect on certain property owners, and distance of billboards from residential areas, including mixed uses, and spoke in opposition to billboards on developed lots. Pat Crank, attorney with Speight, McCue and Crank law firm, representing NextMedia, spoke in favor of the proposed ordinance, which is intended to clarify an inadvertent error/effect in the zoning code, due to the 2006 amendment, by specifying that off-premise signs are not billboards, and discussed the City’s “cap and replace” billboard program. Troy Hammond, general manager, NextMedia Outdoor Advertising, also spoke in favor of the ordinance and the value of billboards to community businesses and organizations, and referenced letters of support that had been submitted. Louise Waters and Donn Edmunds spoke in opposition to billboard signs being located near residential neighborhoods. Ms. Waters further expressed concern with lighted billboards relative to driver distraction, and effect on community beautification. Mr. Brown reported there was no recommendation from Public Services Committee on the item. Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. It was noted the ordinance will define an off-premise sign, correcting language that inadvertently changed the intent of the 2006 amendment. Discussion followed regarding the 2006 zoning amendment pertaining to billboards, cap and replace program, and billboards placed since the 2006 amendment and effect of a recent lawsuit settlement involving NextMedia. Upon inquiry, Mr. Crank provided information on the number of NextMedia billboards that have been properly permitted through the City since the 2006 amendment went into effect, and stated the recent lawsuit involves a confidential settlement. Motion carried. Voting “yes” – all members of the governing body present in Council Chambers with the exception of Ms. Case voting “no”.

“AN ORDINANCE AMENDING CHAPTERS 17.04 INTRODUCTORY PROVISIONS

AND DEFINITIONS AND 17.128 SIGNS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002.” Following a ten minute recess, Mayor Kaysen reconvened the meeting at 7:30 p.m. Pat Crank, attorney with Speight, McCue and Crank law firm, representing NextMedia, stated the ordinance will authorize digital billboards within City limits. He reviewed various digital billboard terminology and definitions contained in the proposed ordinance; stated electronic billboards will not flash, blink or contain moving messages that may be distractive to drivers, and explained the cap and replace system, which means the net number of NextMedia digital billboards will not increase from the 1995 level. If the ordinance is approved, in order to construct a digital billboard Mr. Crank expressed that the company must remove 3 billboards for each (1) digital billboard. He advised, under the City’s cap and replace program, NextMedia currently has 8 credits and, if the ordinance is approved, NextMedia is prepared to waive those credits. Mr. Crank provided information on the number of proposed digital billboards that may be constructed, removal of other billboards, and an ordinance provision stating that the support column of a new or relocated billboard will not be constructed within 150 linear feet of the property line of a single family dwelling located in a zoned district in which billboards are prohibited. He further discussed community benefits of digital billboards involving the ability to timely broadcast public safety messages involving law enforcement announcements and weather alerts, advising that Police Chief Bob Fecht has agreed to be the “entry point” person for all public safety and law enforcement messages. Troy Hammond, general manager, NextMedia, provided information on the reduction percentage of billboard signs within the community with implementation of the ordinance, and commented on modern technology enabling businesses to disseminate advertising messages in a timely manner. Jeff Everson, Daktronics, Inc., provided a presentation regarding digital billboards; LED display and lighting technology; digital billboard features; computerized monitoring and oversight of billboard operations; timely, efficient and reliable messaging capabilities; different types of message boards, and community and business benefits. Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Mr. Brown moved to amend by substitute, seconded by Mr. Pierson. Upon request, City Attorney Dan White explained the different substitute versions contained in the Council meeting packets and clarified the proposed substitute ordinance dated June 5, 2009 was the appropriate substitute pursuant to the motion to amend. It was advised the substitute includes the addition of paragraph G. referencing billboards not being constructed within 150 linear feet of single family dwellings. Frank Cole spoke in opposition to the proposed language in paragraph G. as written, expressing his belief that wording should include any zones that involve residential uses, such as MUB and MUR zones. Upon inquiry, Mr. Crank reviewed the impact to NextMedia regarding any extension of the buffering distance. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present in Council Chambers. Mr. Brown moved to amend paragraph G. of the substitute ordinance by adding the word “residential” after the phrase “single family”, and changing the word “prohibited” to “permitted”. Motion died due to lack of a second. Discussion followed on the benefits of digital billboards, including the ability to provide emergency and safety related community messages; reduction/elimination of static billboards; quality and aesthetic appearance of digital billboards, and physical condition of certain existing billboards. During discussion and upon inquiry, Mr. Hammond provided information on the industry’s move towards digital billboards and company contact information relative to maintenance/repair issues involving existing billboards, and indicated current billboards that will be removed have yet to be completely identified. Main motion as amended carried. Voting “yes” – all members of the governing body present in Council Chambers.

Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:29 p.m. at which time Mr. Collins and Mr. Valdez returned to Council Chambers.

“AN ORDINANCE APPROPRIATING MONIES FOR THE CITY OF CHEYENNE, WY FOR THE VARIOUS PURPOSES IN CONDUCTING THE MUNICIPAL GOVERNMENT OF SAID CITY AND FIXING THE AMOUNT OF GENERAL AND SPECIAL TAXES AS PART OF THE REVENUE REQUIRED TO MEET THE SAID APPROPRIATION, ALL FOR THE FISCAL YEAR BEGINNING JULY 1, 2009, AND ENDING JUNE 30, 2010.” Barb Dorr, City Treasurer, advised that since the previous Finance Committee meeting, communication had been received that the governor would be reducing the state’s direct distribution funding amount to cities and towns in FY 2010 by 5% instead of 10% as initially anticipated, and reviewed several budget areas proposed for amendment changes based upon the 5% reduction and recommendations approved by Finance Committee. Jack Quirk, Mark Shubert and John Fafoutakis provided comments on suggested cost savings relative to employee salaries and benefits; national unemployment rates, and comparison of private vs. public salary compensation and benefit packages. Claus Johnson, President, Cheyenne Public Employees Association (CPEA), expressed appreciation for the work provided by and dedication of City employees, stating many positions are underpaid and the benefit package helps off set salary levels. Mr. Valdez moved to approve on second reading, seconded by Mr. Spiker. Mr. Valdez moved to amend by implementing a 2% pension increase for all eligible non-uniformed City employees and uniformed Police Department employees effective January 1, 2010, seconded by Mr. Spiker. Mr. Fafoutakis spoke in opposition to increasing the City’s pension contribution for employees, expressing his concerns with the current state of the economy. Comments followed on budget savings to be realized if the amendment were approved due to implementation of a 2% increase in January 2010 vs. a 1.5% increase in July 2009. Mr. Brown raised a point of clarification questioning if the amendment failed, would a proposed 1.5% pension increase to be effective July 1, 2009 still be considered as referenced previously during Ms. Dorr’s comments. Information was provided relative to the proposed 1.5% pension increase to be effective July 1st. It was noted the pension increase is to fairly compensate eligible employees with the same pension contribution amount that uniformed members of the Fire Dept. will be receiving due to FY2010 union contract negotiations. Upon inquiry, Ms. Dorr clarified any future proposal to change fire contract provisions to remove the City’s increased pension contribution would require discussion and approval involving contract negotiations for FY2011. She further advised uniformed Police and non-uniformed City employees do not have negotiation rights that union fire employees have, and provided information on pension amounts paid by the City. Mr. Pierson moved to amend the proposed amendment by adding language to clarify that the 2% pension increase would be effective January 1, 2010 and end June 30, 2010, seconded by Ms. Ash. Ms. Dorr suggested the amending language might be better suited for inclusion in the ordinances, also on the meeting agenda, relative to terms and conditions of employment rather than the budget ordinance. It was clarified the motion on the floor was to amend the previous motion to amend by providing for an effective term of the 2% pension increase from 1-1-2010 to 6-30-2010. Discussion included future budget concerns and the option of re-evaluating the pension increase during the FY2011 budget process. Motion to amend the proposed amendment carried. Voting “yes” – Ms. Ash, Ms. Broyles, Ms. Case, Mr. Pierson, Mr. Spiker and Mr. Valdez. Voting “no” – Mr. Brown, Mr. Collins and Mayor Kaysen. Discussion followed on the proposed amendment as amended relative to a 2% vs. 1.5% pension increase and effective time frames. Mr. Brown raised a point of clarification regarding the amendment, as amended, with Ms. Dorr confirming if the amendment fails then the

proposal is that eligible employees would receive a 1.5% pension increase in July, which is the same time frame union Fire Dept. employees would receive the increase. Comments continued on the proposed pension increase and effective time frames, City's financial situation, scrutiny of department expenditures, and pension increase uniformity among employees. During comments regarding fair and equitable treatment for employees and upon inquiry, Ms. Dorr explained employees receiving the 2% pension increase for half a year would receive a less net amount than those who will receive the 1.5% pension increase for the entire fiscal year. Motion to amend to provide a 2% pension increase for non-uniformed employees and uniformed Police Dept. employees effective Jan. 1, 2010, as amended to specify the term of the pension increase would be from Jan. 1, 2010 to June 30, 2010, failed. Voting "yes" – Ms. Ash, Ms. Case, Mr. Pierson and Mr. Spiker. Voting "no" – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Valdez and Mayor Kaysen. Mr. Valdez moved to amend by requesting the Mayor and City Treasurer re-evaluate the proposed budget to fund the \$1 million dollar annual payment to the Board of Public Utilities through other cost savings allocations, seconded by Ms. Broyles. Comments followed with some governing body members expressing their belief that it is the City's responsibility, as represented to voters, that the City would help BOPU with the \$1 million dollar annual bond payment. Mayor Kaysen provided information on City assistance with the bond payment, previous proposal to assess in November the amount of payment the City may need to contribute, and budget adjustments that would be needed if the \$1 million dollar payment is to be fully funded. Motion to amend carried. Voting "yes" – Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Spiker and Mr. Valdez. Voting "no" – Ms. Case, Mr. Pierson and Mayor Kaysen. Mr. Valdez moved to amend to remove the GIS budget line item (\$10,000.00) from the City Council's budget and include it in the Engineering Department budget, seconded by Ms. Broyles. Discussion followed on the initial purpose of placing the GIS funding in the City Council's budget, support for retaining the line item in the Council's budget, and procedure and time frame for any further amendments to the budget ordinance. During discussion and upon inquiry, Ms. Dorr explained to move the \$10,000 from the Council budget to the Engineering budget, the amendment would be needed. Motion to amend carried. Voting "yes" – Ms. Broyles, Mr. Collins, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting "no" – Ms. Ash, Ms. Case and Mr. Brown. Upon inquiry, Ms. Dorr advised due to the amendment appropriating funds for the BOPU payment in the full amount of \$1 million dollars, other funding levels will need to be reduced to compensate for the \$300,000 difference. Mr. Pierson moved to reduce City Council contingency funds by \$80,000, leaving \$10,000 for each Ward, seconded by Mr. Spiker. Discussion followed on past use of Council contingency funds. Motion to amend failed. Voting "yes" – Ms. Broyles, Ms. Case, Mr. Pierson and Mr. Spiker. Voting "no" – Ms. Ash, Mr. Brown, Mr. Collins, Mr. Valdez and Mayor Kaysen. Mayor Kaysen suggested that he and the City Treasurer further review the budget and submit other proposed funding allocation recommendations to members of the governing body within the next few days. Upon query, Ms. Dorr provided information on past funding for graffiti removal and City Council line items that could be utilized for FY2010. Discussion followed on the time frame for further budget ordinance revisions, general fund reserve levels and past budgets. Ms. Ash moved to amend to add the condition that the 1.5% pension increase for non-uniformed employees and uniformed Police Dept. employees would be effective July 1, 2009 through June 30, 2010, seconded by Mr. Pierson. Ms. Dorr and City Attorney Dan White each suggested that the amendment language would be more appropriate in the employee terms and conditions ordinances instead of the budget ordinance. Ms. Ash withdrew her motion with concurrence by Mr. Pierson as the second to the motion. Mr. Collins called for the question to limit debate. Main motion as twice amended carried. Voting "yes" – all members of the

governing body present.

“AN ORDINANCE AMENDING ORDINANCE NO. 3814 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR NON-UNIFORMED EMPLOYEES OF THE CITY OF CHEYENNE.” Mr. Valdez moved to approve on second reading, seconded by Mr. Spiker. Ms. Ash moved to amend to include language specifying that the term for a 1.5% pension increase would be effective July 1, 2009 through June 30, 2010, seconded by Mr. Spiker. Rich Wiederspahn, Human Resources Director, clarified that currently ordinance language does not address the amount of the City’s contribution toward employees’ pensions, and recommended that the proposed amendment language be inserted in Section 4, Compensation, of the ordinance. Mr. Spiker offered a friendly amendment, accepted by Ms. Ash as maker of the motion, to identify the language would be placed in Section 4, Compensation, of the ordinance. Upon inquiry, City Attorney Dan White clarified the City is required by state law to make a certain percentage of employee pension contribution, and that the City can elect to increase its percentage amount. Motion to amend, including the friendly amendment, carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE AMENDING ORDINANCE NO. 3815 DEFINING THE TERMS AND CONDITIONS OF EMPLOYMENT FOR SWORN OFFICERS OF THE CHEYENNE POLICE DEPARTMENT.” Mr. Valdez moved to approve on second reading, seconded by Ms. Broyles. Ms. Ash moved to amend to include language specifying that the term for a 1.5% pension increase would be effective July 1, 2009 through June 30, 2010, said wording to be specified in Section 4, Compensation, of the ordinance, seconded by Mr. Spiker. Rich Wiederspahn, Human Resources Director, advised the compensation section in this ordinance was Section 5. Ms. Ash, with concurrence by Mr. Spiker as second to the motion, revised the motion to amend to identify the language would be inserted in Section 5 of the ordinance. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE AMENDING CHAPTER 2.36, BUILDING DEPARTMENT, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHEYENNE CITY CODE, PERTAINING TO THE AUTHORITY OF THE CITY’S CHIEF BUILDING OFFICIAL AND BUILDING DEPARTMENT STAFF, AND PROVIDING FOR VIOLATION.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Upon inquiry, City Clerk Carol Intlekofer clarified the chapter referenced in the ordinance pertaining to penalties is the general penalty provision contained in City Code. Upon request, Bruce Wilson, Chief Building Official, provided information on the different types of scenarios that could involve violations. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING CHAPTER 5.44, CONTRACTORS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF CHEYENNE CITY CODE, PERTAINING TO THE MEMBERSHIP AND MEETINGS OF THE CONTRACTOR LICENSING BOARD.” Mr. Brown moved to approve on second reading, seconded by Mr. Collins. Mr. Brown moved to amend by substitute, seconded by Mr. Collins. It was advised the substitute addresses members’ terms and

revises reasons listed for removal of board members by inserting the phrase “such as” after the word “inefficiency” in Section 5.44.030, B., 1. Comments followed on interpretation of existing wording involving removal of members from the board. Bruce Wilson, Chief Building Official, clarified the initial intent of the ordinance was to address board members’ term limits. Motion to amend carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Ms. Case voting “no”.

“AN ORDINANCE AMENDING, CREATING, DELETING AND RE-CREATING VARIOUS CHAPTERS AND SECTIONS WITHIN TITLE 15, BUILDINGS AND CONSTRUCTION, OF THE CHEYENNE CITY CODE, RELATING TO GENERAL PROVISIONS, AND ADOPTION OF THE INTERNATIONAL BUILDING CODE AND OTHER RELATED CODES, 2006 EDITION, AND THE NATIONAL ELECTRICAL CODE, 2008 EDITION 2010.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING CHAPTER 8.12, OF TITLE 8, HEALTH AND SAFETY, OF THE CHEYENNE CITY CODE, RELATING TO THE ADOPTION OF THE INTERNATIONAL FIRE CODE, 2006 EDITION.” Mr. Brown moved to approve on second reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body present.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LI LIGHT INDUSTRIAL DISTRICT TO CB COMMUNITY BUSINESS DISTRICT FOR LOT 1, BLOCK ONE, PAT GRIFFIN PARK AND FROM LI LIGHT INDUSTRIAL DISTRICT TO P PUBLIC DISTRICT FOR LOT 2, BLOCK ONE, PAT GRIFFIN PARK, CHEYENNE, WYOMING (LOCATED WEST OF THE INTERSECTION OF MISSILE DRIVE AND WESTLAND ROAD)” -- referred to Public Services Committee (sponsor - Mr. Brown).

“A RESOLUTION AUTHORIZING THE CITY OF CHEYENNE, WYOMING TO LEND FUNDS TO THE PARKS & RECREATION DEPARTMENT TO COMPLETE THE CONSTRUCTION OF THE YOUTH ACTIVITY AND COMMUNITY CENTER IN THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK.” Mr. Valdez advised there was no recommendation from Finance Committee on this item. Mr. Collins moved to adopt, seconded by Mr. Valdez. Mr. Collins moved to amend by substitute resolution, seconded by Mr. Valdez, entitled as follows: A RESOLUTION AUTHORIZING THE USE OF ONE CENT OPTIONAL SALES TAX TO COMPLETE THE PHASE II CONSTRUCTION OF THE YOUTH ACTIVITY AND COMMUNITY CENTER IN THE DAVID R. ROMERO SOUTH CHEYENNE COMMUNITY PARK. Upon inquiry, Todd Feezer Assistant Parks and Recreation Director, verified the substitute would provide for utilization of 5th penny sales tax monies instead of a loan from general fund reserves as initially proposed. He reviewed a brief history on park land acquisition, funding and grants received, and contracts awarded for the project. Discussion followed and included benefits and savings of after school youth programs and community need for the programs that will be provided through the Center, and concern with borrowing funds from 1% sales tax if it affects

projects approved by voters. Upon inquiry, Mr. Feezer and City Treasurer Barb Dorr provided information on use of 5th penny funds, the amount to be borrowed and pay back time frame, which will not affect funding for allocated 1% projects. Ms. Dorr explained the accounting of trading an “asset for an asset” and that none of the budgeted 1% items will change, and reviewed collection procedures involving sales tax. Upon inquiry, City Clerk Carol Intlekofer confirmed public meetings are only required for proposed use of 1% sales tax interest and overage funds. Mr. Feezer confirmed that Parks and Recreation is currently eligible to receive a portion of 5th penny funding. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Pierson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Pierson voting “no”. (#5137)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR THE PROPOSED ANNEXATION OF A TRACT OF LAND SITUATED IN A PORTION OF NW¼ OF THE SW¼ OF SECTION 20, T. 14N., R. 66W., OF THE 6TH P.M., LARAMIE COUNTY, WY (GENERALLY DESCRIBED AS FOLLOWS: A TRACT OF LAND LOCATED EAST OF POWDERHOUSE ROAD, NORTH OF AND ADJACENT TO LIFE CARE CENTER).” Mr. Brown moved to adopt, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body present. (#5138)

[CA] “A RESOLUTION APPROVING OUTSIDE USER’S REUSE WATER SERVICE AGREEMENT, WITH THE CITY OF CHEYENNE PARKS & RECREATION DEPARTMENT.” Motion (per Consent Agenda) carried. (#5139)

[CA] “A RESOLUTION AMENDING RESOLUTION NO. 4798, PERTAINING TO ADOPTION OF A REVISED CHEYENNE-LARAMIE COUNTY BOARD OF HEALTH FEE SCHEDULE FOR INSPECTION SERVICES.” Motion (per Consent Agenda) carried. (#5140)

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR TRANSPORTATION ENHANCEMENT ACTIVITIES - LOCAL (TEAL) FUNDS FOR CONTINUATION OF THE GREENWAY SYSTEM; SPECIFICALLY, THE WALTERSCHEID PEDESTRIAN UNDERPASS PROJECT (1% Specific Purpose Sales & Use Tax).” Motion (per Consent Agenda) carried. (#5141)

[CA] “A RESOLUTION RE-APPROPRIATING THE FISCAL YEAR 2009 BUDGET OF THE CITY OF CHEYENNE ACCORDING TO THE PROVISIONS OF W.S. §16-4-112 AND §16-4-113” -- referred to Finance Committee (sponsor - Mr. Valdez).

LEASES/CONTRACTS/LEGAL:

Agreement between the City of Cheyenne, Transit Division, and Stride Learning Center, to provide cooperative transit services. Mr. Valdez moved to approve, seconded by Mr. Spiker. Mr. Valdez moved to amend by substitute, seconded by Ms. Broyles. It was advised the substitute increases the dollar amount Stride will pay to the City from \$70,582.63 to \$94,110.17. Joe Dougherty, Transit Director, provided information on recovered operating funding levels Stride received relative to the payment amount. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. (#5399)

[CA] Agreement between the City of Cheyenne, Transit Division, and NextMedia Outdoor, Inc., for the purchase of advertising space on Cheyenne Transit Buses. Motion (per Consent Agenda) carried. (#5400)

Agreement between the City of Cheyenne and County of Laramie, for the purpose of creating the Laramie County Community Juvenile Services Joint Powers Board. Mr. Valdez moved to approve, seconded by Ms. Broyles. Upon inquiry, Ronn Jeffrey, Municipal Court Judge, discussed the purpose of forming a joint powers board (JPB), which will assist with community juvenile court and detention issues, and briefly explained potential funding opportunities and development of a plan to be presented to the City and County in the future. Mayor Kaysen recognized County Commissioner Chairman Jeff Ketcham who was in attendance, noting the cooperative efforts between the County and City involving the formation of the JPB. Motion carried. Voting “yes” – all members of the governing body present. (#5401)

[CA] Agreement between the City of Cheyenne and the State of Wyoming, Department of Environmental Quality, for a parcel of land to install an air monitoring system at North Cheyenne Community Park. Motion (per Consent Agenda) carried (revenue to City of \$2,000.00 annually). (#5402)

Contract between the City of Cheyenne, Cheyenne Police Department, and the Cheyenne Regional Airport Board, for law enforcement services. [Clerk’s note: Earlier in the meeting, Mayor Kaysen announced removal of this item from the meeting agenda.]

[CA] Contract between the City of Cheyenne and The Hartford, for life and supplemental insurance coverage for full-time city employees. Motion (per Consent Agenda) carried. (#5403)

[CA] Contract between the City of Cheyenne and Delta Dental of WY, for dental coverage for full-time city employees. Motion (per Consent Agenda) carried. (#5404)

[CA] Professional Services Agreement between the City of Cheyenne and J-R Engineering, for the design of the 2009 Cheyenne Transit Program Bus Stop Upgrades. Motion (per Consent Agenda) carried (amount not to exceed \$152,460.00). (#5405)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Shelter Services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control Services -- referred to Finance Committee.

[CA] Contract to buy and sell real estate between the City of Cheyenne and Rennard Investments, Inc., for property located at the David R. Romero South Cheyenne Community Park -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5321 between the City of Cheyenne and

RECCO Inc., d/b/a Five-R-Co., to allow for Phase II Construction of the Youth Activity and Community Center in David R. Romero South Cheyenne Community Park to commence. Mr. Valdez moved to approve, seconded by Mr. Collins. Mr. Valdez moved to postpone for two weeks (to June 22, 2009), seconded by Mr. Spiker. Mr. Spiker withdrew as second to the motion to postpone. Mr. Pierson seconded the motion to postpone. Todd Feezer, Assistant Parks and Recreation Director, clarified the funding for the contract modification was approved earlier in the meeting pursuant to Agenda Item #32 (Resolution). Mr. Pierson withdrew his second to the motion. Motion to postpone died due to lack of a second. Main motion carried. Voting “yes” – all members of the governing body present.

CONSIDERATION OF BIDS:

[CA] Consideration of Bid #R-29-09 for furnishing two (2) new twin-screw cab & chassis from Peterbilt of Wyoming, Cheyenne, for the Sanitation Department – referred to Finance Committee.

[CA] Consideration of Bid #R-31-09 for furnishing three (3) new medium/heavy duty body on chassis transit busses from Intermountain Coach Leasing, Inc., Colorado Springs, CO, for the Transit Department (American Recovery & Reinvestment Act Funding) -- referred to Finance Committee.

[CA] Consideration of Bid #R-33-09 for furnishing three (3) new 2009 Harley Davidson FLHP motorcycles from Maverick Motorsports, Cheyenne, for the Police Department (2007-2010 1% Sales Tax) -- referred to Finance Committee.

APPOINTMENTS:

Re-Appointment of Jo Butler, Jay Guerin, Robert Kanard, Dick Krahenbuhl, Bebe Molway, Bradley Oberg, Carol Matteson Pascal, Liberty Blain, Doyle Travis, Marty Griffith, and Tom DeHoff to the Greenway Advisory Committee for fiscal year 2010. Mr. Collins moved to approve, seconded by Mr. Brown. Appreciation was expressed for the services provided by committee members. Mayor Kaysen advised as these were mayoral re-appointments, pursuant to Wyoming Statute he would not be voting. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote.

Appointment of Charles Livermont to the Mayor’s Council for People with Disabilities, and Barbara Rogers to the Board of Public Utilities. Mr. Collins moved to approve, seconded by Mr. Brown. Mayor Kaysen advised as these were mayoral appointments, pursuant to Wyoming Statute he would not be voting. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Kaysen who did not vote.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of a Public Hearing to be held Tuesday, June 16, 2009 at 5:00 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2010.

Announcement was made of a Special Session of the Governing Body to be held Tuesday,

June 16, 2009 at 5:15 p.m. in City Council Chambers for proposed budgets for the City of Cheyenne and Board of Public Utilities for fiscal year 2010.

Announcement was made of a calcutta to be held Saturday, July 25, 2009 beginning at 5:30 p.m. at the VIP/Sponsor Tent located in Frontier Park in conjunction with the 2009 Cheyenne Frontier Days Rodeo. Proceeds to benefit Cheyenne area charities.

OTHER CITY BUSINESS:

Rick Parish, Director of Parks and Recreation, announced due to pending inclement weather the first Movies in the Park series scheduled for June 9th in Lions Park at the Amphitheater would be moved to the Taco John's Events Center (TJEC). He noted TJEC will be the site for future movies to be shown during this year's series based upon inclement weather.

There being no further business to come before the governing body, the meeting was officially adjourned at 11:02 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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